

House File 363

H-1048

1 Amend House File 363 as follows:

2 1. Page 1, after line 15 by inserting:

3 <Sec. _____. Section 144C.8, Code 2025, is amended to read as
4 follows:

5 **144C.8 Forfeiture of ~~designee's~~ authority to control.**

6 A designee or person with the authority to control under
7 this chapter shall forfeit all rights and authority under a
8 declaration, or by operation of section 144C.5, and all rights
9 and authority under the declaration, or by operation of section
10 144C.5, shall vest in and devolve upon an alternate designee,
11 or if there is none, vest in and devolve pursuant to section
12 144C.5, under either of the following circumstances:

13 1. The designee or person with the authority to control
14 under this chapter is charged with murder in the first or
15 second degree or voluntary manslaughter in connection with the
16 declarant's death and those charges are known to a third party.

17 2. The designee or person with the authority to control
18 under this chapter does not exercise the designee's authority
19 under the declaration within twenty-four hours of receiving
20 notification of the death of the declarant or within forty
21 hours of the declarant's death, whichever is earlier.>

22 2. By renumbering as necessary.

DUNWELL of Jasper